

HOUSE BILL 1128

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 10 and Title 38, Chapter 8, relative to
constables.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 38-8-107, is amended by adding the
following new subsection:

(g)

(1) The commission shall also issue a certificate of compliance to any
person duly elected and sworn as a county constable; provided, that the person
meets the qualifications for employment as a police officer and satisfactorily
completes an approved recruit training program as required by this part. To
retain such certification, the constable shall also successfully complete an annual
in-service training session appropriate for the constable's responsibilities.

(2) A constable is not required to be certified by the POST commission to
perform the duties of a constable.

(3) The POST commission shall not require a constable to work a certain
number of hours in order to retain certification.

SECTION 2. Tennessee Code Annotated, Section 8-10-104, is amended by deleting the
section and substituting instead:

(a) Each constable newly elected or appointed on or after July 1, 2025, must
complete one hundred twenty-eight (128) hours of training in law enforcement duties.
This training must be accomplished during the first year following election or
appointment.

(b) Prior to completing the required training, the constable must be paired with another constable who has completed all training requirements or a POST-certified law enforcement officer during the constable's official duties. This subsection (b) does not apply to a constable who is elected or appointed within five (5) years of having served as a full-time, POST-certified law enforcement officer.

(c) The one hundred twenty-eight-hour training requirement may be waived if the officer successfully completes a comparable basic law enforcement course within one (1) year of the date of election or appointment.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.